

CHAPTER 16: APPEALS, VARIANCES, FLOODPLAIN AND WATERSHED VARIANCES, AND NONCONFORMITY EXPANSIONS

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Section 16.1 Authority

Under the authority of NCGS 160D-302 and as described in Chapter 6, the Planning Board acting as the Board of Adjustment has the responsibility for consideration of appeals, variances, floodplain variances, watershed variances, and nonconformity expansions.

Section 16.2 Applications

Before a petition for an appeal, variance, or change or replacement of nonconformity, shall be heard by the Planning Board acting as the Board of Adjustment, an application shall be submitted to the Zoning Administrator along with a fee in accordance with fee schedule established by the Town Council. Said fee shall be waived for any petition initiated by the Zoning Administrator or other officials of China Grove who initiate a request on behalf of China Grove. For variance requests, the application shall be accompanied by a map clearly identifying the subject property, all contiguous pieces of properties. In addition, a list of names and addresses of the owners of said properties, from the most recent official tax records, shall be provided by the applicant.

Section 16.3 Appeals

16.3.1 Appeal Initiation

An appeal of any decision made by an administrative official charged with enforcement of zoning or unified development ordinance that regulates land use or development may be made by any person who has standing under GS 160D-405 or the Town to the board of adjustment. An appeal to the Planning Board acting as the Board of Adjustment shall be filed with the town clerk within 30 days. Appeals must state grounds for appeal. The Zoning Administrator shall transmit to the Board all papers constituting the record upon which the action appealed from was taken. The zoning administrator will also provide a copy of the record to the appellant and to the owner of the property if the appellant is not the property owner.

The official who made the decision shall give written notice to the owner of the property that is the subject of the determination and to the party who sought the decision, if different from the owner. The written notice shall be delivered by personal delivery, electronic mail, or by first-class mail.

The owner or other party shall have 30 days from receipt of the written notice within which to file an appeal. Any other person with standing to appeal shall have 30 days from receipt from any source of actual or constructive notice of the decision within which to file an appeal.

It shall be conclusively presumed that all persons with standing to appeal have constructive notice of the decision from the date a sign containing the words "Zoning Decision" or "Subdivision Decision" in letters at least six inches and identifying the means to contact an official for information about the decision is prominently posted on the property that is the subject of the decision, provided the sign remains on the property for at least 10 days. Posting of signs is not the only form of constructive notice. Any such posting shall be the responsibility of the landowner or applicant. Verification of the posting shall be provided to the official who made the decision. Absent an ordinance provision to the contrary, posting of signs shall not be required.

16.3.2 Stay of Proceedings

An appeal of a notice of violation or other enforcement order stays enforcement of the action appealed from unless the official who made the decision certifies to the Board after notice of appeal has been filed

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that because of the facts stated in an affidavit, a stay would cause imminent peril to life or property or because the violation is transitory in nature, a stay would seriously interfere with enforcement of the ordinance. In that case, enforcement proceedings shall not be stayed except by a restraining order, which may be granted by a court. If enforcement proceedings are not stayed, the appellant may file with the official a request for an expedited hearing of the appeal, and the board of adjustment shall meet to hear the appeal within 15 days after such a request is filed. Notwithstanding the foregoing, appeals of decisions granting a permit or otherwise affirming that a proposed use of property is consistent with the ordinance shall not stay the further review of an application for permits or permissions to use such property; in these situations the appellant may request and the board may grant a stay of a final decision of permit applications or building permits affected by the issue being appealed.

The official who made the decision shall be present at the hearing as a witness. The appellant shall not be limited at the hearing to matters stated in the notice of appeal. If any party or the town would be unduly prejudiced by the presentation of matters not presented in the notice of appeal, the board shall continue the hearing. The Board may reverse or affirm, wholly or partly, or may modify the decision appealed from and shall make any order, requirement, decision, or determination that ought to be made.

The official who made the decision shall transmit to the Board all documents and exhibits constituting the record upon which the action appealed from is taken. The official shall also provide a copy of the record to the appellant and the owner of the property that is the subject of the appeal if the appellant is not the owner.

16.3.3 Public Hearing

The Planning Board acting as the Board of Adjustment may, after having held a quasi-judicial public hearing on the matter, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed. On all appeals, applications and other matters brought before the Board, the Board shall inform in writing all the parties involved of its decisions and the reasons therefore.

Section 16.4 Variances

16.4.1 Intent

When unnecessary hardships would result from carrying out the strict letter of this ordinance, the Planning Board acting as the Board of Adjustment shall vary any of the provisions of this ordinance relating to the construction or alteration of buildings or structures or the use of land.

16.4.2 Public Hearing

- A. No variance shall be granted until a quasi-judicial public hearing is held by the Board. Due notice of the public hearing shall be given to all affected parties pursuant to section 6.3.D.1 of this ordinance.
- B. When unnecessary hardship would result from carrying out the strict letter of a zoning ordinance, the Board shall vary any of the provisions of the ordinance upon a showing of all of the following:
 1. Unnecessary hardship would result from the strict application of the ordinance. It shall not be necessary to demonstrate that, in the absence of the variance, no reasonable use can be made of the property.
 2. The hardship results from conditions that are peculiar to the property, such as location, size, or topography. Hardships resulting from personal circumstances, as well as hardships resulting from conditions that are common to the neighborhood or the general public, may not be the basis for granting a variance. A variance may be granted when necessary and

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appropriate to make a reasonable accommodation under the Federal Fair Housing Act for a person with a disability.

3. The hardship did not result from action taken by the applicant or the property owner. The act of purchasing property with the knowledge that circumstances exist that may justify the granting of a variance shall not be regarded as a self-created hardship.
 4. The requested variance is consistent with the spirit, purpose, and intent of the ordinance, such that public safety is secured, and substantial justice is achieved.
- C. No change in permitted use may be authorized by variance. Appropriate conditions may be imposed by the Board on any variance, provided that the conditions are reasonably related to the variance. Any other ordinance that regulates land use or development may provide for variances consistent with the provisions of this subsection.

16.4.3 Watershed Variances

The Planning Board acting as the Board of Adjustment may authorize variances from the specific requirements of the Watershed Overlay Districts in the same manner and subject to the same procedures and requirements of this ordinance for authorizing other variances, provided that:

- A. A notice be mailed by first class mail to all other local governments having watershed regulation jurisdiction within the particular watershed regulation jurisdiction within the particular watershed where the variance is requested and to each entity using that water supply for consumption;
- B. If the variance request is for a major variance as defined herein the following procedure shall apply. If the Board decides in favor of granting the major variance, the Board shall then prepare a preliminary record of the hearing and submit it to the North Carolina Environmental Management Commission (EMC) for review and action. If the Board does not decide in favor of granting the major variance, such unfavorable action shall constitute denial.
- C. In the event of a favorable action by the Board on a major variance, the Board shall cause the record of their hearing to be promptly submitted to the EMC. The record of the hearing shall include but not be limited to:
 1. The variance application;
 2. The hearing notices;
 3. The evidence presented;
 4. Motions, offers of proof, objections to evidence and rulings on them;
 5. Findings and exception; and
 6. The action of the Board including any conditions proposed.
- D. If the EMC approves the major variance or approves with conditions or stipulations added, the EMC shall prepare a decision which authorizes the Board to issue a final decision which would include any conditions or stipulations added by the EMC. If the EMC denies the major variance, then the EMC shall prepare a decision and transmit it to the Board. The Board shall then prepare a final decision denying the major variance.
- E. The Board may only grant a Variance, having first held a public hearing on the matter and having made the determinations described in Section 16.7.2B of this ordinance.
- F. The Board, in approving all Variances, may prescribe appropriate conditions provided they are

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reasonably related to the variance. Violation of such conditions and safeguards, when made a part of the terms under which a Variance is approved, shall be deemed a violation of this ordinance and shall be punishable as prescribed in Chapter 4 of this ordinance.

- G. Unless otherwise authorized by the Board and included in its decision to approve a Variance, any order of the Board in approving a variance shall expire, if a building permit, or certificate of occupancy (for a use for which a building permit is not required), has not been obtained within one (1) year from the date of its decision.

16.4.4 Floodplain Variance Procedures

- A. When unnecessary hardships would result from carrying out the strict letter of this ordinance, the Planning Board acting as the Board of Adjustment shall vary any of the provisions of this ordinance relating to the construction or alteration of buildings or structures or the use of land.
- B. Any person aggrieved by the decision of the Board may appeal such decision to the Court, as provided in Chapter 7A of the North Carolina General Statutes.
- C. Floodplain variances may be issued for:
- The repair or rehabilitation of historic structures upon the determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and that the variance is the minimum necessary to preserve the historic character and design of the structure; or
 - Functionally dependent facilities if determined to meet the definition as stated in Appendix A of this ordinance, provided provisions of 16.7.4.I have been satisfied, and such facilities are protected by methods that minimize flood damages during the base flood and create no additional threats to public safety; or
 - Any other type of development, provided it meets the requirements of this subsection.
- D. In passing upon floodplain variances, the Board shall consider all technical evaluations, all relevant factors, all standards specified in this section, and:
- The danger that materials may be swept onto other lands to the injury of others;
 - The danger to life and property due to flooding or erosion damage;
 - The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;
 - The importance of the services provided by the proposed facility to the community;
 - The necessity to the facility of a waterfront location as defined in Appendix A of this ordinance as a functionally dependent facility, where applicable;
 - The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use;

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- The compatibility of the proposed use with existing and anticipated development;
 - The relationship of the proposed use to the comprehensive plan and floodplain management program for that area;
 - The safety of access to the property in times of flood for ordinary and emergency vehicles;
 - The expected heights, velocity, duration, rate of rise, and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and
 - The costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and streets and bridges.
- E. A written report addressing each of the above factors shall be submitted with the application for a floodplain variance.
- F. Upon consideration of the factors listed above and the purposes of this ordinance, the Board may attach such conditions to the granting of floodplain variances as it deems necessary to further the purposes and objectives of this ordinance.
- G. Any applicant to whom a floodplain variance is granted shall be given written notice specifying the difference between the Base Flood Elevation (BFE) and the elevation to which the structure is to be built and that such construction below the Base Flood Elevation increases risks to life and property, and that the issuance of a floodplain variance to construct a structure below the Base Flood Elevation will result in increased premium rates for flood insurance up to \$25 per \$100 of insurance coverage. Such notification shall be maintained with a record of all floodplain variance actions, including justification for their issuance.
- H. The Floodplain Administrator shall maintain the records of all appeal actions and report any floodplain variances to the Federal Emergency Management Agency and the State of North Carolina upon request.
- I. Conditions for Variances:
1. Unnecessary hardship would result from the strict application of the ordinance. It shall not be necessary to demonstrate that, in the absence of the variance, no reasonable use can be made of the property.
 2. The hardship results from conditions that are peculiar to the property, such as location, size, or topography. Hardships resulting from personal circumstances, as well as hardships resulting from conditions that are common to the neighborhood or the general public, may not be the basis for granting a variance.
 3. The hardship did not result from action taken by the applicant or the property owner. The act of purchasing property with the knowledge that circumstances exist that may justify the granting of a variance shall not be regarded as a self-created hardship.
 4. The requested variance is consistent with the spirit, purpose, and intent of the ordinance, such that public safety is secured, and substantial justice is achieved.

Supplemental Conditions for Floodplain Variances:

- Variances shall not be issued when the floodplain variance will make the structure in violation of other Federal, State, or local laws, regulations, or ordinances.

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- Variances shall not be issued within any designated floodway or non-encroachment area if the floodplain variance would result in any increase in flood levels during base flood discharge.
 - Variances shall only be issued prior to development permit approval.
 - Variances shall only be issued upon a determination that the granting of a floodplain variance will not result in the increased flood heights, additional threats to public safety, or extraordinary public expense, create nuisance, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.
- J. A variance may be issued for solid waste disposal facilities or sites, hazardous waste management facilities, salvage yards, and chemical storage facilities that are located in Special Flood Hazard Areas provided that all of the following conditions are met.

- The use serves a critical need in the community.

No feasible location exists for the use outside the Special Flood Hazard Area.

- The reference level of any structure is elevated or floodproofed to at least the regulatory flood protection elevation.
- The use complies with all other applicable Federal, State and local laws.
- The Town of China Grove has notified the Secretary of the North Carolina Department of Crime Control and Public Safety of its intention to grant a floodplain variance at least thirty (30) calendar days prior to granting the floodplain variance.

Section 16.5 Nonconformities

- A. A nonconforming use shall not be changed to another nonconforming use nor shall a nonconforming structure be replaced after it has been destroyed except upon approval by the Planning Board acting as the Board of Adjustment.
- B. The Board may only grant a change in a nonconforming use or replacement of a nonconforming structure which has been destroyed after having first held a public hearing and having determined that:
- Said change or replacement will be more suitable and appropriate for the lot(s) on which it is located than the existing situation, and
 - That the proposed change will have a less harmful effect than the existing situation on the properties surrounding the lot(s) in question, and
 - That the decision to grant the change will be in harmony with the general purpose and intent of this ordinance and will not be injurious to the neighborhood or otherwise be detrimental to the public welfare.
- C. The Board, in granting said changes, may prescribe appropriate conditions and safeguards in conformity with this ordinance in order to conform with (B) above. Violation of such conditions and safeguards when made a part of the terms upon which the change was granted, shall be deemed a violation of this ordinance and shall be punishable as prescribed in Chapter 4 of this ordinance.

Section 16.6 Rehearings and Appeals from the Board of Adjustment

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- A. An application for a rehearing shall be made in the same manner as provided for an original hearing within a period of 15 days after the date of the decision by the Planning Board acting as the Board of Adjustment. In addition, specific information to enable the Board to determine whether or not there has been a substantial change in facts, evidence, or conditions in the case, shall be presented in writing or graphically. A rehearing shall be denied by the Board of Adjustment, if, in its judgment, such change in facts, evidence or conditions has not been proven. A public hearing shall not be required to be held by the Board to consider holding such a rehearing. Approval of said consideration shall, however, require an affirmative vote of at least four (4) voting members. In the event that the Board finds that a rehearing is warranted, it shall thereupon proceed as in the original hearing except that the application fee shall be waived.
- B. Every quasi-judicial decision shall be subject to review by the Superior Court Division of the General Courts of Justice of the State of North Carolina by proceedings in the nature of certiorari pursuant to G.S.160D-406(k). A petition for review shall be duly verified and filed with the Clerk of Superior Court by the later of 30 days after the decision is effective, or after a written copy thereof is given in accordance with Section 16.3.3. When first-class mail is used to deliver notice, three days shall be added to the time to file the petition.